Boardroom Debate — Incorporation Service Choice
Stripe Atlas vs Gust Launch vs Clerky vs alternatives for RAV's Delaware C-Corp incorporation (4 founders all in Florida, marketplace for timeshare rentals, pre-launch).

Final Verdict: UNANIMOUS YES — Stripe Atlas (5-0). 1 advisor changed (Brian Lower: CONDITIONAL → YES).

Yokum Taku — Round 1

Vote: YES — Stripe Atlas, with one specific caveat.

For a 4-founder Delaware C-Corp on an acquisition path, Stripe Atlas is the right pick. Cooley LLP did the docs, the Cert of Incorporation is the standard form every Delaware corporate lawyer recognizes, the founder restricted stock purchase agreements include four-year vesting with a one-year cliff as the default, and the 83(b) election form is generated with a cover letter explicitly telling founders they have thirty days to mail it.

Clerky is genuinely excellent but doesn't bundle the bank account, doesn't bundle Stripe live activation, doesn't include the Cooley free review, and costs more (~$799). For a bootstrapped pre-launch marketplace running on Stripe, Clerky's better documents do not justify the loss of Atlas's bundling.

Gust Launch I would actively steer away from. Gust's incorporation product is a thin wrapper; their core business is investor-CRM and accelerator-relations. Templates feel templated. Lock-in is real.

Doola markets heavily to non-US founders and the cookie-cutter feel shows up in due diligence. **DIY-with-a-lawyer** ($3-5K) — output quality is highest but for a 4-founder marketplace at this stage, the marginal benefit is small.

The caveat on Atlas:

1. The 4-way equity split must be fully decided BEFORE you click incorporate. Get a one-page founder term sheet drafted and counter-signed first.
2. The OBA blocker for Ajumon and Celin is a stock-issuance blocker for those two specifically — not an incorporation blocker. Sujit and Sandhya can incorporate today and receive their founder stock today. Reserve the equivalent of Ajumon's and Celin's intended founder allocations.
3. The future fifth founder is an option grant, not a founder share grant.
4. The Cooley free review applies to the standard Atlas-generated documents only — not the RAV-specific marketplace operator agreement, owner listing agreement, or timeshare-specific

compliance documents.

On Florida foreign-entity registration: Atlas does NOT do this. Filing fee $70 + $61.25 registered agent fee. Budget another $200-300 for year-one registered agent service.

Speed to launch: Atlas filing typically completes in 7-10 business days for Cert + EIN + Stripe live activation. Mercury bank adds 1-3 days. So roughly two weeks to operational. Florida foreign-entity registration is parallel — another 1-2 weeks.

If I were in the room: Get the four-way equity split signed in a one-page term sheet THIS WEEK before anyone clicks anything on Atlas.

My biggest concern with the other side: The advisors who push toward "find a specialty timeshare lawyer first" are right that you need one — but if they convince you to delay Atlas filing until that lawyer is engaged, you'll burn another 6-8 weeks before you have an EIN, a bank account, or the ability to take real money. Run the workstreams in parallel.

Brian T. Lower — Round 1

Vote: CONDITIONAL — Atlas is fine for the corporate shell, but your real risk is not the formation vehicle.

Yokum's framework is correct for 90% of startup formations and incomplete for yours. RAV operates in the secondary timeshare rental market, regulated under state-specific timeshare statutes. The choice between Atlas and Gust will not save you from a Florida Department of Business and Professional Regulation cease-and-desist if your platform is determined to be operating as an unlicensed timeshare resale service provider.

That said, on the actual question: yes, use Atlas. Three observations from operating inside a major timeshare brand for 26 years:

1. **On industry credibility:** The choice of Atlas vs. Clerky vs. Gust will be invisible to Marriott Vacations Worldwide's M&A team. What they will look at is documented positions from major resort brands, written legal opinion letters on compliance status in the five highest-risk states, and an owner-onboarding flow that requires owners to warrant they have permission to rent through a third-party platform.
2. **On Atlas's Cooley relationship:** Real benefit, but Cooley will only review the standard incorporation documents — not your booking ToS, privacy policy, owner listing agreement, or any of the 8 policy drafts. The Florida Vacation Plan and Timesharing Act regulatory opinion requires a Florida-licensed attorney with timeshare-specific experience. Greenberg Traurig (Orlando) hospitality practice or Holland & Knight vacation ownership group are the right shortlist.
3. **On the 4-founder Florida-resident structure:** Operationally good news. Florida is your highest-volume timeshare state. Owner-facing activities happening in-state can be defended as in-state activities.

Critical timeshare-specific questions Atlas/Gust/Clerky cannot solve:

- Does RAV's commission-on-rental model trigger Florida's timeshare resale service registration requirement under Section 721.20, Florida Statutes? My read is "probably not, but a written legal opinion is needed before launch."
- What is the platform's exposure if a guest checks in and the resort refuses to honor the reservation because the unit's CC&Rs prohibit third-party rental?
- For the 117 resorts in your ResortIQ database: have you obtained or even attempted to obtain documented positions from at least Hilton Grand Vacations, Marriott Vacations Worldwide, and Disney Vacation Club acknowledging RAV's platform?

I'm voting CONDITIONAL because my "yes" on Atlas is contingent on the founder treating incorporation as Step 1 of about Step 12 — not as the gating step before launch.

One specific operational thing about Atlas + Mercury: Mercury will ask for a business description. "We operate a marketplace for timeshare rentals" can flag Mercury's compliance team. Better framing: "Software platform connecting vacation property owners with travelers; commission-based marketplace; payments processed through Stripe Connect."

If I were in the room: Commission the Florida timeshare attorney opinion letter the same week you start the Atlas filing process.

My biggest concern with the other side: Yokum's framing risks treating this as a Silicon Valley YC-startup formation when it is actually a regulated-industry marketplace formation.

Tonia Klausner — Round 1

Vote: YES — Atlas, but for reasons different from Yokum's.

The Atlas-vs-Gust-vs-Clerky question is the wrong frame for what's actually at stake. The corporate-formation-document choice affects whether your acquisition due diligence in Year 4 is clean. The platform-policy-document choice affects whether you can be sued by 50,000 plaintiffs before you reach Year 2. The founder is spending mental cycles on the smaller one because it has a clear forking decision and a clear price tag, while the bigger one is harder to scope.

That said: Atlas, yes. The bench effect is real. When a class action is filed against RAV — and at scale, the class action will come — opposing counsel will pull every public document about RAV's formation. If your formation documents look like every other Wilson Sonsini / Cooley-blessed Delaware C-Corp, plaintiffs' counsel moves on to the substantive claims faster.

Atlas also generates indemnification agreements that protect officers and directors. With four founders all serving as officers, you want these in place from formation.

The thing I want to redirect attention toward: Your platform has 8 policy documents in `docs/support/policies/` at `status: draft`. Until those documents become `status: active`, every owner you onboard and every traveler who creates an account is doing so under no enforceable terms — no enforceable arbitration clause, no enforceable class action waiver, no enforceable privacy policy. If you launch beta with the policies still at draft, every user who signs up during that window has signed up under no terms. You cannot retroactively bind them to arbitration after.

Atlas is a 2-week task. The 8-document lawyer review is a 4-8 week task. **Run them in parallel, not sequentially.**

Critical items to flag in the 8 existing drafts:

- **Booking ToS:** Disclaim RAV is a party to rental? Binding arbitration with class waiver? Specify jurisdiction?
- **Privacy Policy:** Every data flow disclosed? Stripe, Resend, Sentry, PostHog, GA4, OpenRouter, VAPI, Deepgram, ElevenLabs?
- **Cancellation Policy:** Match what the platform actually does? Most common source of consumer class actions in this category.
- **Subscription Terms:** FTC Negative Option Rule (Oct 2024)? California's automatic renewal law? 30-day notice for price changes?

On TCPA compliance for SMS: When you turn off SMS_TEST_MODE, every recipient must have provided prior express written consent specifically for SMS, separately from agreeing to the

ToS. One TCPA class action with 10,000 affected users is $5M-$50M in statutory damages.

If I were in the room: Engage a Florida-based marketplace attorney this week. Hand them the 8 policy drafts. Tell them: "Atlas filing is in progress; we'll have the entity in 2 weeks; review these as platform documents."

My biggest concern with the other side: The 80th-percentile risk for RAV in Year 1-2 is a consumer class action — privacy, TCPA, automatic renewal, or a misrepresented cancellation policy.

Jason Gamel — Round 1

Vote: YES — Atlas, with strong emphasis that the choice itself is industry-invisible.

Marriott Vacations Worldwide's corporate development team has never refused a meeting because a startup used the wrong incorporation service. They have refused meetings because the startup couldn't articulate what its compliance posture was, what its consumer-protection framework was, or whether the resort brands were aware of its existence. Atlas is fine. Use it. Move on.

What actually matters for industry credibility:

- Delaware C-Corp is correct. Marriott Vacations Worldwide, Hilton Grand Vacations, Wyndham, Diamond Resorts (now Hilton subsidiary), and BVacations all do their own M&A through Delaware-formed entities and expect targets to look the same.
- 4-founder structure with assigned C-suite roles signals "real company" vs. "hobbyist." Make LinkedIn presence reflect all four founders publicly.
- OBA-blocked founders cannot publicly represent RAV at industry events until OBAs clear. Sandhya and Sujit should be the public face for the next 6-12 months.
- Florida operational base is an asset. Marriott Vacations Worldwide, Hilton Grand Vacations, Wyndham Destinations all headquartered in Orlando. Industry's operational center.

On regulatory risk Atlas does not address: Section 721.20(11) penalty is $5,000 per violation — and each transaction can be a separate violation. Even if the legal opinion concludes RAV is not a resale service provider (likely), the opinion letter itself is an asset.

FTC 2023 timeshare advertising guidance applies to your RAV Smart Suite tools. Pricing claims, availability claims, testimonials all have specific compliance requirements.

On resort-brand recognition: The single most important pre-launch credibility step is documented acknowledgment from at least one major resort brand that they are aware of RAV and have not objected. Not a partnership agreement — a written acknowledgment.

Practical sequencing:

1. Sign the 4-way founder term sheet this week
2. Start Atlas filing the same week
3. Commission Florida timeshare attorney legal opinion the same week
4. Sandhya and Sujit (OBA-cleared) begin outreach to Hilton Grand Vacations, Marriott Vacations Worldwide, Disney Vacation Club brand-protection teams the following week
5. Apply for ARDA membership in parallel
6. Florida foreign-entity registration once Cert of Incorporation arrives

7. Then — only then — flip Staff Only Mode off and onboard the first owner

If I were in the room: Apply for ARDA membership the same week you start Atlas filing. Cost is real ($5-15K) but door-opening value over 24 months is 10-100x.

My biggest concern with the other side: If the founder treats lawyer-blessed corporate shell + lawyer-blessed policy documents as sufficient to launch, RAV will launch into a market where major resort brands have never heard of the platform and will react to it as a surprise.

Patrick McKenzie — Round 1

Vote: YES — Stripe Atlas, for the most boring possible reason: it eliminates the highest-friction step in standing up RAV's payment infrastructure.

Disclosure: I'm at Stripe. I have a conflict of interest on this question.

The Stripe activation problem: When you sign up for a Stripe account independently, Stripe's underwriting team evaluates your business. For a timeshare rental marketplace — historically a high-chargeback category — that conversation is non-trivial. Manual review takes 2-10 business days, transaction limits are constrained during review, and a denied application creates painful workaround paths.

Atlas pre-clears all of this. The activation is essentially instant. The day you complete Atlas filing is the day you can run a real transaction.

On Stripe Connect specifically: Your platform uses destination charges. The marketplace operator (RAV) is the merchant of record on every transaction. You are the party Stripe holds responsible for chargebacks. Atlas's Cooley templates know how to handle this. I have personally seen Gust-formed companies have issues during Stripe Connect onboarding because Gust's business profile language doesn't pre-anticipate marketplace structures.

On Mercury: Fine bank for marketplace startups. Banking-as-a-service on top of Choice Financial Group / Evolve Bank & Trust. Matters in two scenarios: (1) raising $10M+ — investors want primary banking moved; (2) credit line larger than Mercury's $5M ceiling. Neither matters at your stage.

On the merchant of record question: Card issuer's chargeback adjudication will look at RAV's ToS to evaluate chargebacks. If your ToS does not clearly establish that the cardholder is purchasing a service from RAV (the platform) rather than directly from the property owner, you'll lose chargebacks you should win. The merchant-of-record framing in your ToS needs to be explicit, not implicit.

On state money transmission licensing: RAV's escrow mechanism (PaySafe holds funds until resort confirmation) is functionally a money transmission activity in some states' interpretations. The standard structure for marketplace platforms is to use an established money services business. PaySafe is the right answer if PaySafe is what I think it is — but the founder needs a written legal opinion confirming this.

If I were in the room: Get your Stripe Disputes process documented before you take a single real transaction. Atlas gets you the live Stripe account; it does not staff your dispute response operation. The first 50 chargebacks define your processor relationship for the next two years.

My biggest concern with the other side: Everyone is treating Atlas as a corporate-formation decision. It's actually a payments-infrastructure decision wearing a corporate-formation costume.

Round 1 Vote Tracker

Advisor	Vote	One-Line Summary
Yokum Taku	**YES**	Atlas — standard Cooley-blessed docs, but lock the 4-way equity split before clicking incorporate
Brian T. Lower	**CONDITIONAL**	Atlas is fine for the shell; the real risk is Florida timeshare regulatory exposure that Atlas does not address
Tonia Klausner	**YES**	Atlas — but the choice is small noise vs. getting the 8 policy drafts lawyer-reviewed in parallel
Jason Gamel	**YES**	Atlas — and the choice itself is industry-invisible; spend the energy on ARDA + resort-brand outreach
Patrick McKenzie	**YES**	Atlas — the reason is pre-cleared Stripe live activation, not the formation docs

Round 1 Consensus: YES (4 YES, 1 CONDITIONAL)

Yokum Taku — Round 2

Final Vote: **YES** — unchanged.

Who I'm arguing with most: Brian T. Lower — his framing that Atlas is "the easy one" downstream of the harder work.

Sharpest insight in this debate:

> *Patrick's point that Atlas is a payments-infrastructure decision wearing a corporate-formation costume. That reframing is exactly right.*

Brian is right that Atlas-vs-Gust is the easy decision, but he is wrong that it is somehow downstream of the timeshare regulatory work. The regulatory work attaches to the entity. The entity must exist first.

Without the entity: the Florida timeshare attorney cannot issue an opinion letter on RAV; the 8 policy documents cannot be enforceable terms of service; Tonia's marketplace attorney cannot opine on platform documents that bind a non-existent entity; the Hilton/Marriott brand-protection outreach happens from a pseudonym company name; ARDA membership requires a corporate member; Mercury cannot open a business bank account; Stripe live cannot be activated.

The mistake to avoid is treating "Atlas in progress" as "we're working on it" and letting it stretch from a 2-week task to a 6-week task. Founders procrastinate on incorporation because Atlas's wizard makes you make decisions you'd rather defer (equity split, vesting, board composition). Lock the equity split in a one-page term sheet this week. Sign Atlas the same week. Two weeks later you have an entity.

Final position: YES on Atlas, with the explicit caveat that incorporation is workstream #1 of approximately five parallel workstreams. The other four: Florida timeshare attorney engagement, marketplace lawyer for policy review, brand-protection outreach to Hilton/Marriott/Disney, ARDA membership application.

Brian T. Lower — Round 2

Final Vote: YES — upgrading from CONDITIONAL.

Who I'm arguing with most: Yokum — specifically his rebuttal of my framing as "Step 1 of about Step 12."

Did I change my mind? YES. My CONDITIONAL was based on concern that the founder would treat Atlas as a launch-clearance step. Yokum's response and Tonia's parallel-workstream framing addressed that.

Sharpest insight in this debate:

> *Jason's framing that "Atlas vs. Gust is industry-invisible" — meaning the resort-brand decision-makers and M&A counsel for the eventual acquirer don't care which formation service was used.*

Yokum is right that Atlas filing is week 1, not week 6. The Florida timeshare attorney engagement is also week 1. Both happen in parallel.

I want to add something Patrick didn't address. He correctly flagged that chargeback adjudication will look at RAV's ToS. What he didn't address — and this is where my timeshare experience matters — is the worst chargeback scenario: cardholder paid RAV $1,400; PaySafe escrow released to owner; cardholder showed up at resort; resort refused entry because owner's CC&Rs prohibit third-party rentals. RAV's defense ("service was rendered by the owner, not by RAV") only works if the booking ToS says exactly that. This is the thing Atlas does not solve. Tonia's policy review does. Run them in parallel.

On Jason's ARDA recommendation — I think he's overweighting it for a pre-launch startup. Jason is also the current ARDA CEO and has institutional reasons to want new entrants to join. For $5-15K pre-launch, calibrate based on whether you want public visibility now or 6-12 months of quiet operation first.

Tonia Klausner — Round 2

Final Vote: **YES** — unchanged.

Who I'm arguing with most: Patrick McKenzie — on his money transmission point, which I think he understated.

Sharpest insight in this debate:

> *Patrick's "Atlas is a payments-infrastructure decision wearing a corporate-formation costume." That single sentence reorients the whole debate.*

Patrick's chargeback dispute response template recommendation is right and is the kind of operational documentation that defends a class action. In a privacy or consumer protection class action, plaintiffs' counsel will demand discovery on RAV's chargeback handling. Templated responses with policy-reference language do not contain admissions; ad-hoc responses by Sujit or Sandhya in real-time do.

On his money transmission point — he was correct on the analysis but understated the risk. The fact that PaySafe is named in your context file but I cannot verify what it is — whether it's a licensed money services business, whether it operates through an underlying licensed entity — is itself a flag. The Florida marketplace attorney engagement should specifically address: (1) is PaySafe licensed in Florida, California, Hawaii, Nevada, South Carolina at minimum? (2) if not, does RAV's use of PaySafe inherit unlicensed transmission exposure? (3) what is the alternative (Stripe Treasury, Bill.com, or Stripe Connect-native escrow)?

On Brian's chargeback scenario — RAV's owner onboarding flow needs to require the owner to make a binding warranty that they have the right to rent through RAV, with indemnification of RAV. Owner agreement is missing from the current 8 drafts. Add it before launch.

Jason Gamel — Round 2

Final Vote: **YES** — unchanged.

Who I'm arguing with most: Brian T. Lower — on his pushback against ARDA membership timing.

Sharpest insight in this debate:

> *Patrick's chargeback response template recommendation. It's the kind of detail that signals to industry partners that RAV is a serious operation.*

Brian raised a strategic question I want to address: should RAV operate quietly for 6-12 months under the radar to establish transaction volume before asking for permission, or signal participation to the industry from day one?

The case for going quiet first: build proof-of-traction before approaching brands. The case for being public from day one: brand-protection teams will eventually find your platform. If they find you and your first interaction is a cease-and-desist, your starting position is adversarial. KOALA partnering with Expedia in May 2024 put this entire category on the brand-protection radar — it is essentially impossible for RAV to operate at any scale without these brands becoming aware.

I'm voting for proactive. Send a low-key introductory email to Hilton Grand Vacations brand protection within 30 days of incorporation. Not a partnership pitch. Not a press release. A short email saying "we've launched a platform that may feature properties associated with your brand; we want to ensure compliance with your brand usage guidelines."

On ARDA membership — Brian's right that I have institutional reasons to want startup members. Compromise: defer ARDA membership to month 6 once you have 1,000+ transactions.

Patrick McKenzie — Round 2

Final Vote: **YES** — unchanged.

Who I'm arguing with most: Yokum — but in agreement, not disagreement.

Sharpest insight in this debate:

> *Tonia's diagnosis that the founder is spending mental cycles on the smaller decision (Atlas vs. Gust) because it has a clear forking decision and a price tag, while the bigger decision (which marketplace lawyer to engage and what to ask them) is harder to scope.*

Tonia caught me understating the money transmission risk. She's right.

The fact that PaySafe is the named escrow provider and we cannot collectively verify whether PaySafe is a licensed money services business in every state RAV operates in — that's a red flag, not a yellow flag. The marketplace attorney engagement needs to specifically include this question.

The alternative is Stripe Connect's own marketplace escrow capabilities. With destination charges, you can hold funds in the platform account until release via Transfer. Stripe is itself a licensed money transmitter in the relevant states. RAV doesn't inherit transmission exposure. If PaySafe doesn't survive the legal opinion, replacing it with Stripe Connect-native escrow is a 2-3 week engineering project.

On Brian's chargeback scenario — Airbnb saw this pattern early and built their owner agreement to require explicit warranty of right-to-rent + indemnification of the platform. VRBO followed. RAV's owner onboarding flow needs to do the same.

On Jason's recommendation: add Stripe's marketplace risk team to the outreach list. Stripe maintains relationships with marketplace-pattern startups.

Final Vote Tracker

Advisor	Round 1	Final	Changed?
Yokum Taku	**YES**	**YES**	NO
Brian T. Lower	**CONDITIONAL**	**YES**	YES
Tonia Klausner	**YES**	**YES**	NO
Jason Gamel	**YES**	**YES**	NO
Patrick McKenzie	**YES**	**YES**	NO

Final Consensus: YES — UNANIMOUS (5-0 in favor of Stripe Atlas)

Who changed their mind: Brian T. Lower (upgraded CONDITIONAL → YES)

Biggest fight in the room: Whether the Atlas-vs-Gust choice is the right decision to be focused on at all. Yokum/Patrick/Tonia argued it matters for distinct reasons. Brian/Jason argued the choice is largely irrelevant compared to the harder workstreams.

Founder Briefing

You asked the board to choose between Stripe Atlas, Gust Launch, Clerky, and any alternative. The board unanimously voted Atlas — but the more important takeaway is what that vote actually says: this is the right decision, but it's also the smallest decision in front of you right now.

The decision: Use Stripe Atlas to incorporate RAV as a Delaware C-Corp.

The verdict: Unanimous YES (5-0). Brian was the only conditional vote in Round 1 and upgraded to YES in Round 2.

The core tension: The board agreed on Atlas, but disagreed sharply on how much you should be thinking about it. Yokum, Patrick, and Tonia framed Atlas as having specific, non-fungible advantages. Brian and Jason argued it's industry-invisible and the founder is over-weighting it because it has a clear forking decision and a clear price tag, while the harder workstreams get less mental attention because they're harder to scope.

The sharpest insight:

> *"Atlas is a payments-infrastructure decision wearing a corporate-formation costume." — Patrick McKenzie. Pre-cleared Stripe live activation eliminates 2-10 days of manual underwriting friction. Worth the entire $500 fee on its own.*

Recommended action — this week, in parallel:

1. Sign a one-page founder term sheet today documenting the 4-way equity split.
2. Start Atlas filing the same week.
3. Engage a Florida marketplace lawyer (Greenberg Traurig Orlando hospitality or Holland & Knight vacation ownership group). Hand them the 8 policy drafts AND ask for opinions on PaySafe licensing AND Florida Vacation Plan / Timesharing Act regulatory opinion.
4. Begin proactive brand-protection outreach to Hilton Grand Vacations, Marriott Vacations Worldwide, Disney Vacation Club within 30 days.
5. Defer ARDA membership to month 6 (per Brian's negotiation with Jason).

The dissent worth heeding: Brian's Round 1 concern, which he upgraded out of in Round 2 but which still matters: do not let "Atlas filing complete" become equivalent to "platform is launch-ready." The corporate shell is necessary, not sufficient.